



Initials ^{DS} MW / ^{DS} Md

SUBCONTRACTOR MASTER SERVICES AGREEMENT

For Consulting and Information Technology Services

This Master Services Agreement (this "Agreement") is made as of September 22, 2025, by and between TruDynamic, LLC, a Virginia corporation ("TRUDYNAMIC"), and (Mojo Solutions and Services MSS LLC) whose address is: (1665 E 4th St, Suite #101, Santa Anna, CA 92701)

RECITALS

WHEREAS TRUDYNAMIC, wishes to engage Subcontractor for various consulting and/or information technology related services; and

WHEREAS, the Subcontractor is in the business of providing, and wishes to provide, such services.

AGREEMENT

NOW, THEREFORE, in consideration of the foregoing and the mutual promises and covenants contained herein, the parties agree as follows:

1. Subcontractor Services. Subcontractor agrees to provide personnel, its expertise and professional, technical and project management services as are called for by each statement of work or purchase order (shall mean any document executed by the parties hereto describing work to be performed by the Subcontractor or personnel, and such terms may be interchangeable) entered into hereunder or as otherwise necessary and appropriate to carry out the purposes thereof (together with all other services to be provided hereunder, the "Services"). Subcontractor, unless otherwise specified in the SOW shall be responsible for providing its own resources and equipment as necessary to provide the Services.

2. Personnel. Subcontractor agrees to provide personnel who are professionals approved of in writing by TRUDYNAMIC with respect to the roles identified in the applicable Statement of Work or purchase order, as well as such other qualified professionals as necessary to properly perform Subcontractor's obligations under this Agreement. Subcontractor agrees that it shall not voluntarily remove any individual initially or subsequently during the performance of the applicable Statement of Work or purchase order, without prior minimum notice of ten (10) business days to TRUDYNAMIC and shall use commercially reasonable efforts to maintain consistent staffing of personnel.

3. Compliance with Laws (Domestic / International).

3.1 Access to Records.

(i) Subcontractor shall give TRUDYNAMIC, pursuant to a client's request, access to their employees' and agents' personnel and other employment related records, including records pertaining to the verification of any individual's authorization to be employed in the United States of America if the submitted consultant(s) is the Subcontractor's own W2 employee(s).

(ii) Subcontractor shall give TRUDYNAMIC access to all records pertaining to wages paid for each individual assigned pursuant to the terms of this Agreement if the submitted consultant(s) is the Subcontractor's own W2 employee(s). Such records shall include payroll records generated or capable of being generated by Subcontractor or any agent thereof, personnel files containing records concerning salary history, current and past wage statements, I-9 forms and W-2 forms pertaining to any individual assigned to work pursuant to the terms of this Agreement if the submitted consultant(s) is the Subcontractor's own W2 employee(s).



Initials ^{DS} MW / ^{DS} Ma

(iii) Subcontractor shall provide all access to records and/or records requested by TRUDYNAMIC within seven (7) days of the request if the submitted consultant(s) is the Subcontractor's own W2 employee(s).

3.2 Other Requirements

Subcontractor shall insure that working conditions of employees regardless of location shall comply with all international requirements with respect to working and employment conditions, including, but not limited to International Covenant on Economic, Social and Cultural Rights.

4. Price and Payments

4.1 Timesheets.

Subcontractor shall provide weekly timesheets and expense reports signed or approved by TRUDYNAMIC for each Subcontractor employee or agent who has been assigned to perform services pursuant to this Agreement. Such timesheets and expense reports shall be submitted to TRUDYNAMIC in the manner prescribed by TRUDYNAMIC, and each timesheet shall include all time and other charges that have accrued. All time sheets must be signed by an authorized representative of TRUDYNAMIC or a designated representative at a TRUDYNAMIC client's location. TRUDYNAMIC will identify and inform the Subcontractor who the designated representative is for approving timesheets. Subcontractor shall not invoice, bill or otherwise charge TRUDYNAMIC for any employee time not reflected on such timesheets. Subcontractor shall maintain all timesheet records for a period not less than three (3) years.

4.2 Invoices.

Subcontractor shall submit an invoice with the required detail to TRUDYNAMIC via hard copy or Email for all sums due under this Agreement and such invoices shall be delivered to TRUDYNAMIC on a monthly basis starting from the initial start date of the assigned consultant. Invoices must be in the calendar month format, (ex. January 1-31, 2010). All invoices must be accompanied by approved timesheets, or they will not be considered as received.

4.3 Payment.

TRUDYNAMIC shall pay each invoice properly issued by Subcontractor here under thirty (30) days after TRUDYNAMIC receives invoice from Subcontractor. The date the invoice shall be deemed as received is when all timesheets associated with the claimed hours are furnished. All timesheets must be approved when submitting with the respective invoice.

4.4 Taxes.

4.4.1. Compliance. The parties shall comply with all federal, state, and local tax laws applicable to transactions occurring under this Agreement. The subcontractor shall provide TRUDYNAMIC with a completed Form W-9.

4.4.2. Payment Obligation. TRUDYNAMIC shall be responsible for applicable transaction taxes imposed on charges for services provided by Subcontractor (without any markup) to TRUDYNAMIC under this Agreement. TRUDYNAMIC shall not be responsible for any taxes imposed on Subcontractor arising from Subcontractor's consumption of goods and services in connection with this Agreement. Nor shall TRUDYNAMIC be responsible for any taxes, levies or other charges measured on income or gross receipts of the Subcontractor.

5. Client Guidelines.

5.1 Criminal Background Checks; Subcontractor shall ensure that all personnel assigned to work pursuant to the terms of this Agreement have participated in a criminal background check covering the counties in which the person was



Initials ^{DS} MW ^{DS} ML

employed or resided for the past seven (7) years. The background check must have been performed by a reputable agency and on record not later than the first day all personnel actually begin work. A copy of the report shall be provided to TRUDYNAMIC. In the event TRUDYNAMIC coordinates the Criminal Background Check then TRUDYNAMIC shall charge the cost of the Criminal Background Check to the Subcontractor.

5.2 Drug Test; Subcontractor shall procure a ten (10) panel drug test for all personnel to be assigned pursuant to the terms of this Agreement. The report evidencing the results of the said drug test shall be provided directly to TRUDYNAMIC. The drug test report shall be dated no later than fifteen (15) days prior to the date on which the individual tested begins their assignment. In the event TRUDYNAMIC coordinates the Drug Test for Subcontractor then the cost of the Drug Test shall be charged to the Subcontractor.

6. Acceptance Testing.

6.1 Testing Process. TRUDYNAMIC and the end client shall have the right to review any Deliverable to be provided by Subcontractor to TRUDYNAMIC or the end client under this Agreement and shall have the right to either accept or reject each such Deliverable. Except as set forth in Section 6.2 Cure, after Subcontractor's delivery of any Deliverable, TRUDYNAMIC and/or the end client shall, within a reasonable time, test the Deliverable using the applicable test procedures and standards set forth in the applicable Statement of Work or such other standards as are mutually agreed upon in writing. After TRUDYNAMIC or the end client has completed the testing described herein, TRUDYNAMIC shall notify Subcontractor in writing either that: (i) the Deliverable meets the Acceptance Criteria and acceptance of such Deliverable has occurred ("Acceptance"); or (ii) the Acceptance Criteria have not been met.

6.2 Cure. If TRUDYNAMIC or the end client determines that a Deliverable does not conform to the applicable Acceptance Criteria and notifies Subcontractor, including with such notice an exception report describing the nonconformity (the "Exception Report"), Subcontractor shall promptly investigate the alleged nonconformity and shall correct such nonconformity within ten (10) Business Days of receipt of the Exception Report. Upon Subcontractor's notice to TRUDYNAMIC that Subcontractor has cured such nonconformity, TRUDYNAMIC shall re-test the defective component or deliverable as provided in herein.

7. Changes in Scope or Additional Services.

TRUDYNAMIC may, at any time and from time to time, request that the Subcontractor perform additional services for TRUDYNAMIC. Within a reasonable period (not to exceed ten (10) Business Days) after receiving such a request from TRUDYNAMIC, Subcontractor shall prepare and submit a written proposal in the form of a Statement of Work to TRUDYNAMIC that: (i) if applicable, assesses the expected impact of such request on any Services or Deliverables then being provided hereunder; (ii) defines and describes how Subcontractor would fulfill or satisfy such request, and describes any additional Services and Deliverables to be provided by Subcontractor pursuant thereto in reasonable detail; (iii) sets forth pricing, specifications, implementation plans and time schedules, with appropriate milestone and completion dates, anticipated by Subcontractor in connection with fulfilling such request; (iv) contains proposed completion and acceptance criteria; and (v) sets forth any other information required by this Agreement to be in a Statement of Work. No additional Statement of Work shall be binding upon TRUDYNAMIC or Subcontractor unless executed and delivered by an authorized signatory of such party. Any additional Statement of Work shall be governed by the terms and conditions of this Agreement.

8. Work Product and Proprietary Materials

8.1 Work Product. All Work Product, other than Special Excluded Work Product (meaning any Work Product that is specifically identified on a SOW, or any waiver of IP Ownership), shall be owned exclusively by the end Customer and, effective in each case upon its creation, is hereby assigned by Subcontractor and its Personnel to end client. Subcontractor is hereby granted a license to such Work Product solely for purposes of carrying out its duties under the applicable



Initials ^{DS} MW ^{DS} Md

Statement of Work or purchase order and during the term thereof. Notwithstanding the foregoing, Subcontractor, and its employees shall be free to use and retain its and their particular preexisting or independently created General Knowledge so long as it or they apply such General Knowledge without disclosure, use or copying of any Confidential Information.

8.2 Subcontractor Proprietary Materials. All Work Product owned by Subcontractor and in existence on the Commencement Date or, if created or acquired thereafter, created or acquired entirely independently of Subcontractor's engagement hereunder (collectively, "Subcontractor Work Product") together with any Special Excluded Work Product, shall continue to be owned exclusively by Subcontractor and TRUDYNAMIC shall not have any rights thereto except as provided herein.

8.3 Treatment of and Access to Customer Data. Notwithstanding anything to the contrary herein, Customer shall be and remain, at all times, the sole and exclusive owner of the Customer Data (including any modification, compilation, or derivative work there from and all intellectual property and proprietary rights contained therein or pertaining thereto) and, effective in each case upon the creation of any such items. Subcontractor shall not commercially exploit the Customer Data, or do any other thing that may in any manner adversely affect the integrity, security, or confidentiality of such items, other than as specified herein or as directed by TRUDYNAMIC in writing.

8.4 TRUDYNAMIC Proprietary Materials. All Work Product owned by TRUDYNAMIC and in existence on the Commencement Date or, if created or acquired thereafter, created or acquired entirely independently of Subcontractor's engagement hereunder (collectively, "TRUDYNAMIC Work Product"), shall continue to be owned exclusively by TRUDYNAMIC and Subcontractor shall not have any rights thereto, except as may be expressly provided pursuant to this Agreement.

9. General Business Activity Restrictions.

Subcontractor shall ensure that it nor any personnel assigned to work pursuant to the terms of this Agreement do not: (a) conduct any non-Customer related business activities while working at any TRUDYNAMIC or Customer worksite; (b) conduct any type of training for Subcontractor's personnel unless specifically authorized by TRUDYNAMIC; (c) attempt to participate in TRUDYNAMIC benefit plans or activities; (d) send or receive non-Customer related mail or e-mail through Customer's mail or e-mail systems; (e) sell, advertise, or market any products or distribute printed, written, or graphic materials on Customer's premises.

10. Non-Competition

10.1 All subcontractor contact with Customer associated with a project, other than day to day operational matters, must be approved in advance by the TRUDYNAMIC. Subcontractor recognizes that TRUDYNAMIC has expended and will continue to expend substantial resources to develop relationships with its clients. During the term of this Agreement and any renewals hereof and for one (1) year after the expiration of the initial term and renewal periods, Subcontractor agrees that Subcontractor or any of its employees, agents, and servants will not:

10.1.1 Solicit either directly or through any third party to provide any services to any manager, hiring manager or director of the Client or Customer to which Subcontractor has provided services pursuant to the terms of this Agreement, Subcontractor has been introduced by TRUDYNAMIC or about which Subcontractor has received information through TRUDYNAMIC about any opportunity to provide services to the Client or Customer.

10.1.2 Retain or attempt to retain directly or indirectly for itself or for another party, the services of another one of TRUDYNAMIC's subcontractors or employees to which Subcontractor has been introduced or has received information about through TRUDYNAMIC or through any third party for which Subcontractor has performed services or to which Subcontractor was introduced under this Agreement.

10.2 Reasonableness: Subcontractor acknowledges that these restrictions are reasonable but, if any Court shall hold such



Initials ^{DS} MW ^{DS} ML

restrictions to be unreasonable as to time, geographic areas, activities or otherwise, such restrictions shall be deemed to be reduced to the extent necessary in the opinion of such Court to make them reasonable.

10.2.1 Subcontractor Personnel: During the term of this Agreement and for a period of one year thereafter, TRUDYNAMIC shall not solicit/hire / offer any employment or other form of services directly or indirectly either by itself or through its affiliates to any of employees / personnel of Subcontractor about whom TRUDYNAMIC has contact or came to know of as a result of this Agreement.

11. Confidential Information

Subcontractor and TRUDYNAMIC each agree and its respective directors, officers, employees, agents, contractors and subcontractors (collectively, its "Employees") shall keep in confidence all information relating to the products, product plans, methods of manufacture, trade secrets, secret processes, finances, research, development, know-how, or personnel data, and all other confidential knowledge, data and information related to the business and affairs of the other party, its affiliates and subsidiaries (collectively, "Confidential Information") that may be acquired by any of them pursuant to or in connection with this Agreement or the relationship contemplated by this Agreement. Without limiting the generality of the foregoing, Confidential Information includes marketing and sales information, pricing, technical information product information and technology, business information plans and prospects, together with any excerpts, reports or documentations prepared by or on behalf of recipient of the information incorporating referred to or reflecting in whole or in part, any such information. Subcontractor data, Deliverables and Work Product shall be considered Confidential Information of TRUDYNAMIC or the client. At all times during and after the term of this Agreement, neither party nor any of its Employees will, without the other party's express prior written consent, which consent such other party may grant or withhold in its sole and absolute discretion, publish, communicate, divulge or disclose in any manner or fashion whatsoever any such Confidential Information. In addition, TRUDYNAMIC shall maintain all Confidential Information relating to Subcontractor, and any work produced under this Agreement. Upon termination of this Agreement, or at any time at the request of Subcontractor and TRUDYNAMIC all Employees shall return to the other party all records, data, notes reports, sketches, material, equipment and other documentation and other property, and all reproductions of the same, furnished hereunder.

12. Warranties and Remedies

12.1. General Warranties. Subcontractor represents and warrants to TRUDYNAMIC that:

12.1.1 Authority. Subcontractor has the right and authority to enter into and perform this Agreement and grant the rights and licenses provided for herein.

12.1.2. Services. The Services will be performed in a timely, competent, and professional manner and in accordance with the Specifications, the requirements hereof, and the applicable SOW. In the event end Customer rejects, the services provided by Subcontractor within ten (10) days from the date Subcontractor's personnel begin providing service arising out of the failure to provide timely, competent and professional services which meet industry standards and are in compliance with the standards and specifications set forth in the SOW and/or purchase order then Subcontractor shall not invoice, bill or otherwise charge TRUDYNAMIC for the services allegedly provided by the Subcontractor's personnel.

12.2 Intellectual Property. The Work Product and Services provided by Subcontractor under this Agreement, and TRUDYNAMIC's exercise, in accordance with the terms hereof, of any intellectual property rights granted under this Agreement,

will not infringe or otherwise violate any statutory or other rights of any third party in or to any intellectual property rights therein including, without limitation, copyrights, patents, trade secrets, trademarks, or moral rights; and no third party has asserted, is asserting or, to Subcontractor's knowledge, has threatened or has or will have any reasonable basis to assert a claim of any of the foregoing.

12.3 Certain Remedies. Subcontractor shall promptly and at no charge to TRUDYNAMIC (i) re-perform any Services that do not meet the requirements under this Agreement and (ii) correct all failures of any Deliverables hereunder to perform in accordance with the requirements of this Agreement. No remedy set forth in this Agreement (except to the extent



Initials ^{DS} MW ^{DS} ML

specifically stated herein) is intended to be exclusive of any other remedy, and each remedy shall be in addition to every other remedy given hereunder, or now or hereafter existing at law, in equity, by statute, or otherwise. No quality assurance, acceptance test, or other similar procedure shall be deemed to obligate TRUDYNAMIC with respect to, or necessarily to constitute, legal "acceptance" of any deliverable and no such procedure shall be deemed to waive any right or remedy hereunder.

13. Limitation of Liability.

13.1 General Limitation. Neither party shall be liable hereunder for consequential or punitive damages (including lost profits or savings) even if it has been advised of their possible existence, except that the foregoing shall not restrict a party's ability to recover actual damages for breach hereof. In no event shall the total and cumulative liability of either party to the other under this Agreement for any claim or claims hereunder concerning performance or nonperformance hereunder exceed five (5) times the aggregate amounts paid or payable by TRUDYNAMIC and its Affiliates under this Agreement.

13.2 Exclusions. Notwithstanding the foregoing, there shall be no limitation on the amount of liability, and no exclusion of any types of damages for the following: (i) Subcontractor's breaches of Articles 10 or 11, (ii) Subcontractor's indemnification obligation pursuant to Article 14, or (iii) Subcontractor's willful misconduct.

14. Indemnification

14.1 Mutual indemnification for injury and property damage. Subcontractor and TRUDYNAMIC shall defend, indemnify and hold each other and their officers, directors, employees, Affiliates, and agents harmless from and against all losses, damages, liabilities, claims, actions, and all related expenses (including reasonable attorneys' fees and expenses) by reason of injury or death to any person or damage to any tangible property arising or resulting from the presence of the Indemnifying Party (as defined below), its employees, contractors, or agents on the premises of the other party, except that indemnification shall not be available to the extent of the other party's negligence or willful misconduct.

14.2 Subcontractor Intellectual Property Indemnification. Subcontractor shall defend, indemnify, and hold harmless TRUDYNAMIC and its officers, directors, employees, Affiliates, and agents from and against any claims and shall pay all losses, damages, liabilities, claims and actions, and all related expenses (including reasonable attorneys' fees and expenses) based on any allegations that would evidence or constitute a breach of the warranties set forth herein or that the Deliverables, Work Product or any other intellectual property delivered or licensed or to which rights are otherwise acquired hereunder, and any part or parts thereof (collectively, the "IP Assets") infringe or misappropriate the rights of others. In the event that any IP Assets are alleged or found to be misappropriated from, or to infringe on the intellectual property rights of, a third party, or if their use by TRUDYNAMIC is enjoined, Subcontractor shall, in addition to the foregoing indemnification obligation, at TRUDYNAMIC's option and Subcontractor's sole expense, either: (i) secure a license to use such portion to enable such IP Assets to be utilized in a manner consistent with the terms of this Agreement, or (ii) replace the same with other intellectual property assets with equally suitable, functionally equivalent, compatible, non-infringing assets or services, as reasonably determined by TRUDYNAMIC, or (iii) modify the IP Assets so that they no longer infringe or misappropriate the rights of others, while still meeting the requirements of this Agreement.

14.3 Procedures. If any legal action covered by this Article is commenced against a party entitled to indemnification hereunder ("Indemnified Party"), prompt written notice thereof shall be given to the party required hereunder to indemnify ("Indemnifying Party"). Indemnified Party shall cooperate in all reasonable respects with Indemnifying Party and its attorneys in the investigation, trial, and defense of such claim and any appeal arising there from; provided, however, that Indemnified Party may, at its own expense, participate, through its attorneys or otherwise, in such investigation, trial, and defense of such claim and any appeal arising there from. No settlement of a claim that involves a remedy other than the payment of money by Indemnifying Party shall be entered into without the consent of Indemnified Party, which consent will not be unreasonably withheld or delayed. After notice by Indemnifying Party of its election to assume full control of the defense of any such claim, Indemnified Party shall not be liable to Indemnifying Party for any legal expenses incurred thereafter by Indemnifying Party in connection with the defense of that claim. If Indemnifying Party does not provide



Initials ^{DS} MW ^{DS} Ma

notice and assume full control over the defense of a claim subject to such defense as provided in this Section, Indemnifying Party may participate in such defense, at its expense, and the Indemnified Party shall have the right to defend the claim in such manner as it may deem appropriate, at the expense of Indemnifying Party.

15. Termination

15.1 Term. The initial term of this Agreement shall commence on the Effective Date and continue thereafter for an indefinite period which would expire two (2) years after the completion of the last SOW executed pursuant to this agreement.

15.2 TRUDYNAMIC Termination.

15.2.1 For Cause. TRUDYNAMIC may terminate this Agreement, or any one or more Statements of Work hereunder, by written notice to Subcontractor, upon the occurrence of any of the following events and the continuance thereof ten (10) Business Days (immediately upon written notice with respect to clauses below) after such written notice (any such termination, a "TRUDYNAMIC Termination for Cause"): (a) Subcontractor becomes insolvent or subject to any proceeding under the federal bankruptcy laws or other similar laws for the protection of creditors. (b) Subcontractor materially breaches any term, provision, representation or warranty of this Agreement and such breach or default is not cured to TRUDYNAMIC's reasonable satisfaction within such ten (10) Business Day period. (c) Subcontractor's breach of its obligations under Articles 10 or 11 or any other breaches incapable of cure.

15.2.2 For Convenience. Either party may terminate this Agreement upon ten (10) working day's prior written notice to the other party for convenience (any such termination that is not an TRUDYNAMIC Termination for Cause).

15.3 Purchase Order/SOW. TRUDYNAMIC may terminate, at the request of client, any one or more SOW's or other agreement for services issued hereunder immediately upon written notice to Subcontractor at the address provided herein or as otherwise provided in writing to TRUDYNAMIC by Subcontractor. TRUDYNAMIC shall specify in any termination notice given hereunder whether it is terminating the Agreement, one or more specified SOWs. In the absence of any specification, TRUDYNAMIC's termination notice shall be deemed to cover the Agreement and all Statements of Work. In the event that a termination covers less than all of the Agreement and all Statements of Work and purchase orders, not terminated shall continue in full force and effect.

15.4 Subcontractor Termination Subcontractor may terminate one or more Statements of Work or purchase orders by providing ten (ten) days' notice to TRUDYNAMIC or hereunder solely if (i) TRUDYNAMIC has failed to make a payment due in connection with such Statement of Work or Statements of Work, (ii) such payment is not subject to a good faith dispute. In the event that Subcontractor is terminating all the effective SOWs pursuant to the preceding sentence, such termination shall also terminate this Agreement.

15.4.1 Appropriate Notice for Termination: Subcontractor must provide TRUDYNAMIC with a minimum of ten (10) working days' notice in the event Subcontractors employee will no longer perform services for TRUDYNAMIC. In the event that ten (10) working days' notice is not provided, Subcontractor shall rebate TRUDYNAMIC for the cost of ten (10) working days. Subcontractor must provide the assigned TRUDYNAMIC account manager with notice that Subcontractor's employee will no longer perform services. Upon receipt of this notice, the subsequent working day shall be deemed as day one (1) of the notice period. Notice may be provided in the form of fax or email provided that a verification of receipt can be confirmed; TRUDYNAMIC acknowledgement in the form of an email reply may also serve as verification.

15.5 Effects of Termination.

15.5.1. Termination shall not constitute a party's exclusive remedy for any default, and neither party shall be deemed to have waived any of its rights accruing hereunder prior to such default. If either party terminates this Agreement or any Statement of Work hereunder as a result of a claimed default by the other party and such other party does not agree that a default was committed, then such other party shall have the right to avail itself of all defenses and remedies available to it at



Initials ^{DS}  ^{DS} 

law, in equity, by statute, or otherwise.

15.5.2 Transition. In the event of any termination or expiration of this Agreement or any Statement of Work hereunder, Subcontractor shall cooperate reasonably in the orderly wind-down of the Services being terminated and/or transition to another service Subcontractor.

15.5.3 Survival. The obligations and rights of the parties pursuant Articles 8, 11, 12, and 14 hereof shall survive the termination or expiration of this Agreement. Expiration of the Agreement shall not affect the parties' obligations under any Statement of Work then in effect and as to such then existing Statements of Work, the Agreement shall be deemed to continue in full force and effect until Services under such Statement of Work are completed.

16. Miscellaneous

16.1 Amendments. Except as otherwise expressly provided herein, this Agreement may not be modified, amended, or in any way altered except by a written agreement signed by the parties hereto that states it is an amendment to this Agreement. The parties expressly agree that no oral modification of this agreement shall be enforceable and no purported oral modification shall be deemed a waiver or modification of this paragraph.

16.2 Assignment. Neither TRUDYNAMIC nor Subcontractor shall assign this Agreement nor delegate any of its duties, in whole or in part, without the prior written consent of the other party. In no event shall consent to an assignment of this Agreement or the obligations hereunder be construed as discharging or releasing the parties in any way from the performance of their obligations under this Agreement. An assignee of either party authorized hereunder shall be bound by the terms of this Agreement and shall have all of the rights and obligations of the assigning party set forth in this Agreement. If any assignee refuses to be bound by all of the terms and obligations of this Agreement or if any assignment is made in breach of the terms of this Agreement, then such assignment shall be null and void and of no force or effect.

16.3 Non-Performance

Neither TRUDYNAMIC nor Subcontractor may withdraw from this Agreement without mutual consent. Once a Purchase Order is signed, neither TruDynamic nor Subcontractor may withdraw without compensation of \$10,000 USD (ten-thousand dollars) unless mutually consented. Either party can claim non-performance if the terms of the Purchase Order are not met to include start date, and/or hourly or monthly bill rate. The mutual consent must come in the form of email, fax, or certified letter. This penalty shall be paid by either party within 30 (thirty) days of withdrawal or non-performance. Once terms are not met, a notice of non-performance may be sent by email, fax, or certified letter.

16.4 Arbitration:

In the event a dispute arises concerning this contract and/or the performance of the Parties (including any officer, agent or employee of company) arising out of or in any way related to this contract or any of their acts or performance in connection therewith or related thereto, the dispute shall be submitted to binding arbitration through and pursuant to the commercial rules of the American Arbitration Association or similar arbitration organization. By agreeing to arbitration, all parties waive their right to court or jury trial. All claims, including cross claims and counter claims, must be brought in the arbitration, or are waived. It is understood that the arbitration will be administered by said arbitration association and will include the use of its arbitrators. The arbitration shall be held in Dallas County, Texas. All costs and/or fees of the arbitration shall be equally divided among all parties to the arbitration and all parties to the arbitration shall be solely responsible for paying their own attorney's fees.

17. Contract Interpretation.

17.1 Captions; Section Numbers. Article, section and paragraph numbers and captions are provided for convenience of reference and do not constitute a part of this Agreement. Any references to a particular Section of this Agreement shall be deemed to include reference to any and all subsections thereof.

17.2 Neither Party Deemed Drafter. Despite the possibility that one party or its representatives may have prepared the initial draft of this Agreement or any provision thereof or played a greater role in the preparation of subsequent drafts, the parties agree that neither of them shall be deemed the drafter of this Agreement and that, in construing this Agreement,



Initials ^{DS} MW ^{DS} Ma

no provision hereof shall be construed in favor of one party on the grounds that such provision was drafted by the other.

17.3 Counterparts. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original and all of which together shall be deemed the same agreement.

17.4 Compliance. All documentation required by Subcontractor in order to comply with all existing foreign or domestic statutes, ordinances, regulations, or other laws, which may be applicable to Subcontractor's performance of Services hereunder. TRUDYNAMIC reserves the right to reasonably request and review all such applications, permits, and licenses prior to the commencement of any Services hereunder.

17.5 Entire Agreement: Order of Precedence. This Agreement, together with all Statements of Work and all documents expressly referred to herein, constitutes the complete and exclusive statement of the agreement of the parties with respect to the subject matter hereof and supersedes all prior proposals, understandings, and agreements, whether oral or written, between the parties with respect to the subject matter hereof, including but not limited to any non-disclosure agreements previously entered into by and between the parties. Subcontractor acknowledges that there were no representations or promises made by TRUDYNAMIC on which Subcontractor has relied in entering into this Agreement that are not expressly stated herein. In the event of a conflict between the provisions of this agreement and any SOW, exhibit or rider, then the terms of this agreement shall take precedence, unless the terms of this agreement expressly give precedence to such SOW, exhibit, or rider.

17.6 Expenses. Each party shall be responsible for, and shall pay, all expenses paid or incurred by it in connection with the planning, negotiation, and consummation of this Agreement.

17.7 Force Majeure. Neither party shall be liable for any failure or delay in performing its obligations under this Agreement, or for any loss or damage resulting there from, due to acts of God, the public enemy, terrorist activities, riots, fires, and similar causes beyond such party's control. In the event of such failure or delay, the date of delivery or performance shall be extended for a period not to exceed the time lost by reason of the failure or delay; provided that the party affected by such delay is using reasonable commercial efforts to mitigate or eliminate the cause of such delay or its effects and, if events in the nature of the force majeure event were foreseeable, used commercially reasonable efforts prior to its occurrence to anticipate and avoid its occurrence or effect. TRUDYNAMIC shall have no obligation to make any payments. to Subcontractor during the period of failure or delay. Each party shall notify the other in writing promptly of any failure or delay in, and the effect on, its performance. Notwithstanding the foregoing, Subcontractor shall not be excused from its performance hereunder in the event of a strike, walkout, work stoppage or other labor dispute affecting its Personnel, those of TRUDYNAMIC or those of a third party.

17.8 Further Assurances. TRUDYNAMIC and Subcontractor each agree to execute and deliver (and cause their Personnel to execute and deliver) any appropriate instruments or documents to confirm the assignments and rights and licenses provided for herein and to enable the other to perfect the same by filing, registration or otherwise in any state, territory, or country, as may be reasonably requested and prepared by such other from time to time.

17.9 Governing Law. This Agreement shall be governed by and interpreted in accordance with the internal substantive laws of Virginia. The parties agree that all actions and proceedings arising out of or related to this Agreement shall be brought only in a state or federal courts located in Virginia or the Commonwealth of Virginia (USA), and the parties hereby consent to such venue and to the jurisdiction of such courts over the subject matter of such proceeding and themselves. Subcontractor hereby appoints the Secretary of State (or equivalent official) as their agent in fact for the acceptance of process.

17.10 Independent Contractor. Subcontractor is an independent contractor; nothing in this Agreement shall be construed to create a partnership, joint venture, or agency relationship between the parties. Each party shall be solely responsible for payment of all compensation owed to its employees and agents, as well as employment related taxes. Subject only to the terms of this Agreement, Subcontractor shall have complete control of its agents and employees



Initials ^{DS} MW ^{DS} Md

engaged in the Services. Subcontractor shall ensure that neither it nor its agents or employees shall act or hold themselves out as agents or employees of TRUDYNAMIC.

18. Insurance.

18.1 General Requirements. Without limiting Subcontractor's undertaking to defend, hold harmless, and indemnify TRUDYNAMIC as provided herein, Subcontractor shall purchase and maintain insurance to protect Subcontractor from claims of the type set forth below that arise out of or result from Subcontractor's operations, services, and/or performance under this Agreement

18.2 Coverage. The insurance required hereunder shall be written for not less than the limits of coverage specified herein, or as required by law in any jurisdiction with authority over Subcontractor's operations, services, and/or performance, whichever is greater. Coverage shall be written on an occurrence basis, except for Errors and Omissions Insurance.

1. Workers Compensation and Employers Liability insurance affording compensation benefits for all employees in an amount sufficient by virtue of the laws of the state or jurisdiction in which the work or any portion of the work is performed and employers' liability insurance with limits of \$1,000,000 for each accident or disease
2. Commercial General Liability Insurance with a combined single limit of \$1,000,000 per occurrence.
3. Automobile Liability Insurance with combined single limit of \$1,000,000 per occurrence for injuries, including accidental death and property damage.

The foregoing insurance coverage shall be primary to and non-contributory with respect to any other insurance or self-insurance that may be maintained by TRUDYNAMIC and its subsidiaries and affiliates and shall contain a cross-liability or severability-of-interest clause where applicable.

Certificate of Insurance. Subcontractor shall, prior to providing any Services hereunder, provide TRUDYNAMIC with a certificate of insurance evidencing the above insurance coverage and listing TRUDYNAMIC as an additional insured on Subcontractor's General Liability Insurance policy. Such certificate shall also stipulate that Subcontractor or its insurer must provide TRUDYNAMIC with thirty (30) days prior written notice of any cancellation or material modification in Subcontractor's insurance coverage listed above.

18.3 Notice. Any notice or other document or communication required or permitted hereunder to the parties hereto shall be deemed to have been duly given only if in writing and delivered by any of the following methods: (i) certified U.S. mail, return receipt requested, postage prepaid, to the address of the receiving party as set forth below or such other address as such party may dictate according to the notice provisions hereof; (ii) hand delivery to the person specified below or any other person so designated according to the notice provisions hereof; or (iii) facsimile directed to the person specified below at the facsimile number listed below, or such other person or facsimile number so designated according to the notice provisions hereof, or (iv) electronically via email. Notices shall be deemed delivered when received by the party being notified.

If to Subcontractor, all notices shall be addressed and delivered to:

Mojo Solutions and Services MSS LCC
1665 E 4th St
Suite #101
Santa Ana, CA 92701
Attn: Marwa Amer
Tel: 844-250-9677
Email: marwaamer@mojosol.com



Initials  

If to TRUDYNAMIC, all notices shall be addressed and delivered to:

TruDynamic, LLC
2900 S Quincy Street
Suite 711
Arlington, VA 22206
Attn: Mike Woodson
Tel: (336)580-0910
Email: mikew@trudynamic.com

19. Publicity. Without TRUDYNAMIC's express prior written consent, which it may provide in its sole discretion, the subcontractor shall not use TRUDYNAMIC's name or the name of any Affiliate of TRUDYNAMIC, or any divisions or business units.

of any of them, or the name of any Customer, or the name of any product or service of any of any of the above referenced entities or their Affiliates, in connection with any marketing, advertising, or other publicity.

20. Severability. If any provision of this Agreement or its applications to particular circumstances is determined by a court of competent jurisdiction to be invalid or unenforceable, that provision (or its application to those circumstances) shall be deemed stricken and the remainder of this Agreement (and the application of that provision to other circumstances) shall continue in full force and effect insofar as it remains a workable instrument to accomplish the intent and purposes of the parties: the parties shall replace the severed provision with the provision that will come closest to reflecting the intention of the parties underlying the severed provision but that will be valid, legal, and enforceable.

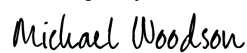
21. Third Party Rights Excluded. This Agreement is an agreement between the parties, and confers no rights upon any of the respective employees, agents, or contractors or any other person.

22. Time of essence. Time is of the essence in the performance of the obligations of Subcontractor hereunder.

23. Waivers: No purported waiver by any party of any default by any other party of any term or provision contained herein (whether by omission, delay or otherwise) shall be deemed to be a waiver of such term or provision unless the waiver is in writing and signed by the waiving party. No such waiver shall in any event be deemed a waiver of any subsequent default under the same or any other term or provision contained herein.

IN WITNESS WHEREOF, the parties have caused this Master Services Agreement to be executed and delivered by their respective, duly authorized representatives.

TruDynamic, LLC

DocuSigned by:

44517EA91856497...

By: Mike Woodson

Its: Vice President Consulting Services

Dated: 9/22/2025

Mojo Solutions and Services MSS LLC

DocuSigned by:

8221E96F2A4A4FF...

By: Marwa Amer

Its: Director of Sales and Operations

Dated: 9/23/2025